Who to Ask About the House, the Savings and Dad

Fifteen questions about what Mom may be able to keep, sorted by who can answer, with room to write what they say.

You've asked what happens to the house and heard something different each time. Part of the reason may be that it is really several questions, and they belong to different people.

Bring these written down, ask them as they are, and write the answer under each one. This guide doesn't answer the questions and doesn't say which matters most. That depends on Mom's and Dad's situation and on your state's rules, which is why each question sits beside the kind of person who can speak to it.

Your Medicaid planner

The person who goes through the list of what Mom and Dad own with your family and explains how the questions fit together.

1. Here is our list of what Mom and Dad own and whose name is on each thing. What else would you want to see?

2. What may Mom be able to keep and still qualify for Medicaid, in our state and in her situation?

3. Which things on our list may be treated favorably under our state's rules, and which may remain exposed?

4. What is the difference between Mom qualifying for Medicaid now and the asset and estate questions that may come up later?

5. Which of our questions about the house, about Dad and about estate recovery should go to an elder law attorney, and which to a licensed financial professional?

6. What records should we keep from here on, and in what form?

7. When the review is done, can we have in writing what may be protected, what may remain exposed, and what needs ongoing attention?

An elder law attorney

For the questions that need legal judgment: the home, a spouse, how things are owned, beneficiaries, trusts and estate recovery.

1. What happens to the house? Here is whose name is on the deed and who lives there now. What else do you need to know?

2. Dad is still at home. What protections may apply to a spouse at home in our state, and what would you need to know about Dad's housing, income and assets to say?

3. Some things are in two names. What do you need to know about how each one is owned?

4. Here are the beneficiaries named on the retirement accounts and the policies, and the trust papers if there are any. Which of these do you want to review?

5. Could estate recovery, a lien or another recovery issue come up in Mom's situation, and what would you need to see to say?

6. Should additional legal planning be considered?

A licensed financial professional

For the questions that need financial judgment. If you aren't sure a question belongs here, bring it to your Medicaid planner first.

1. Here are the insurance policies and who is named on each. What about them would you want to review?

2. Should additional financial planning be considered, and what would you need to see from us first?

What this guide doesn't do

It doesn't answer these questions or tell you which one comes first. If you aren't sure who a question belongs to, write “not sure” beside it and bring it to your Medicaid planner. Nothing here is legal, financial or tax advice.

Ready for the next step?

You have your questions, and you know whose each one is. The planning interview asks about your family's situation and gives you a free planning report, so the people you're about to ask can see where your family is starting from.

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